

Ruling

Discovery Referee is appointed. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640.

1. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear the Motion for Protective Order scheduled for hearing on February 4, 2026, and any and all subsequently filed discovery motions involving all Parties, including the T-Mobile Defendants. The hearing of MWC's Motion scheduled for February 4, 2026 is **vacated** from Department 16's calendar and is referred for further hearing to the Discovery Referee. All future discovery motions shall be filed with and heard directly by the Discovery Referee upon appointment.
2. By no later than February 10, 2026, Counsel for the Parties, including the T-Mobile Defendants, are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to be appointed to the Court along with the proposed referee's *curriculum vitae* and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by February 10, 2026 the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by Friday, February 13, 2026. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.
3. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 33.33% between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to this discovery motion between MWC and Plaintiff.
4. MWC's Counsel is directed to prepare and e-file a proposed order for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by all Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment. The Discovery Referee shall be also be provided with a copy of this order, and the order of the Court dated July 31, 2025.
5. The Clerk of Court shall vacate all of Plaintiff's Discovery Motions calendared for February 4, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.
6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO INTERROGATORIES
FILED BY: VAHIDY, ZEHRA**

TENTATIVE RULING:

Summary

Plaintiff Zera Vahidy's Motion to Compel Further Responses to Form and General Interrogatories, and Further Responses to Requests for Admissions that she propounded on Defendant ("Motion") is **vacated** and referred to a Discovery Referee as set forth herein.

Background

This is an employment case where Plaintiff Zera Vahidy ("Plaintiff") alleges her employer, Defendant Mechanics Bank ("Defendant") discriminated against her on the grounds that she is Pakistani-American, denied medical accommodations, and ultimately terminated her employment after twenty years of service. Defendant Mechanics Bank denies these allegations and claims that Plaintiff had demonstrated performance issues that lead to her separation.

On October 30, 2025, Plaintiff filed a Motion to Compel Further Responses to Form and General Interrogatories, and Further Responses to Requests for Admissions that she propounded on Defendant ("Motion"). The Motion also seeks \$66,518.76 in monetary sanctions. The Motion is supported by a Notice, Separate Statement, Memorandum of Points and Authorities and Declaration of Counsel Sarah R. Nichols. The Motion specifically seeks further responses to the following discovery requests:

1. Plaintiff's Special Interrogatories, Set One, Nos. 1-35.
2. Plaintiff's Form Interrogatories - General, Set One, Nos. 12.1, 12.7, 15.1, 16.1, 16.2, 16.3 and 17.1.
3. Plaintiff's Form Interrogatories – Employment, Nos. 201.1, 201.3, 204.4, 207.2, 209.2, 211.1, 215.1, 215.2, 216.1, and 217.1.
4. Plaintiff's Requests for Admission, Nos. 6-8, 16, 17, 20, 21, 23, 24, 25, and 35.

Plaintiff's counsel claims that Defendant's responses were evasive and contained objections that were improper.

On January 22, 2026, Defendant filed opposition to this Motion supported by a separate statement, Memorandum of Points and Authorities, and Declaration of Counsel Emily Ely. Defendant's counsel claims that Plaintiff's counsel did not meaningfully meet and confer to resolve the discovery disputes and did not extend professional courtesy to her when she was experiencing serious medical challenges requiring emergency room hospital visits. Defendant also asserts that the responses to the discovery in question were made in good faith, and that the objections were valid because the discovery propounded was vague or impermissibly sought documents that were irrelevant, going back over a decade. Defendant's counsel also catalogued the meet and confer efforts to resolve the issues with Plaintiff's counsel.

On January 28, 2026, Plaintiff filed a reply brief contesting the arguments raised by Defendant's opposition, which the Court has considered.

Analyses

This Court maintains a judicial philosophy that discovery motions are overused and should be

discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. “Motions to compel should be considered a last resort when trying to prepare a case for trial.” California Civil Discovery Practice (4th ed Cal CEB) §15.32.C. Additionally, “trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes.” California Civil Discovery Practice (4th ed Cal CEB) §15.38.6. Here, Counsel appeared to have met and conferred, but are unable to resolve the discovery disputes before Plaintiff filed its motions.

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Cal. Code of Civ. Proc. §§639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan). The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. Cal. Code of Civ. Proc. Section 639(a)(5) states: “When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.”

Applied here, the Court finds that a discovery referee is necessary to hear and determine this and all future discovery disputes in this case. The Court makes this finding on the grounds that there are 52 interrogatories for which further responses are being compelled. The issues relate to statements made by several witnesses and pertain to numerous factual allegations involving whistleblowing, workplace accommodations, and discrimination. There are 11 Requests for Admissions, consisting, for which further responses are being compelled. There are a total of 194 discovery responses being elicited, including subparts. The Parties motion consists of over 700 pages, including exhibits of numerous “meet and confer” dialogue. The Court finds that Counsel are unable to resolve discovery issues in an informal manner after meeting and conferring, suggesting a level of acrimony that requires discovery referral.

After reviewing the papers submitted by Counsel, and applying the relevant statutory and decisional authorities, the Court finds good cause to refer this Motion to a Discovery Referee as follows:

Ruling

Discovery Referee is appointed. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640.

1. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear Plaintiff’s Motion scheduled for hearing on February 4, 2026, and any and all subsequently filed discovery motions involving both Parties. The hearing of this Motion scheduled for February 4, 2026 is **vacated** from Department 16 and is referred for further hearing to the Discovery Referee.

2. By no later than February 10, 2026, Counsel for the Parties, are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee's *curriculum vitae* and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by February 10, 2026 the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by Friday, February 13, 2026. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.
3. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50% between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to this discovery motion referred to the Discovery Referee.
4. Plaintiff's Counsel is directed to prepare and e-file a proposed order for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by all Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.
5. The Clerk of Court shall vacate all of Plaintiff's Discovery Motions calendared for February 4, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.
6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

18. 9:01 AM CASE NUMBER: C24-01435
CASE NAME: TRYCIA LINO VS. GRE MANAGEMENT SERVICES, INC.
***HEARING ON MOTION FOR DISCOVERY ORDER IMPOSING SANCTIONS FOR FAILURE TO OBEY**
PRIOR COURT ORDER
FILED BY: SAFEWAY, INC.

TENTATIVE RULING:

Summary

Defendant GRE Management Services, Inc. and Safeway, Inc. (collectively, "Defendants") Motion for Order Imposing Sanctions against Plaintiff Trycia Ann Lino ("Plaintiff") is **granted** in part as set forth herein.

Background

On October 8, 2025, Defendants filed a Motion for Order Imposing Sanctions for Failure to Obey Prior Order dated July 2, 2025. The Motion is supported by a Notice, Memorandum of Points and Authorities, and Declaration of Natasha Langenfeld., Esq. The Motion seeks Terminating Sanctions